

As a result, the Court took the MSJ hearing off calendar.

The calendaring of events in this case is a confusing spider web of events. The bottom line, however, is that we need to ascertain whether plaintiff's counsel is or is not going to continue to represent plaintiff, and whether (and how) plaintiff is going to continue to litigate the case, before we can fairly ask her or any of the other parties to proceed to full consideration of any of the substantive matters now before the Court.

There are three summary judgment motions on today's calendar, two of which were only belatedly added onto this calendar. Plaintiff, however, has sought to continue those motions because she asserts she needs some still-pending discovery in order to respond to them. Her own motion to compel the discovery she says she needs for that purpose is calendared for June 17.

There is also a motion to file under seal. Two related motions to file under seal, however, have been noticed for April 29, coinciding with a CMC set for that date. Even absent other concerns, the summary judgments should await ruling on the motions to seal.
(4/15/2026 Minute Order.)

At this time, the motions to seal have been resolved on April 29, 2026, the motion to withdraw as counsel has been resolved on June 17, 2026, and the motions to compel have been resolved as the proposed order granting the motions was executed by this Court on July 10, 2026.

On July 13, 2026, Plaintiff filed a declaration stating that the discovery that this Court compelled has not yet been obtained and asking that the Court continue the instant MSJ hearing of July 22, 2026, "under Code of Civil Procedure section 437c(h) until the court-ordered discovery is produced and reviewed. . ." (Declaration of Michelle Daly, ¶¶ 5, 7.) As the Court's initial continuance would mean nothing without the compelled discovery being produced and reviewed, the Court will further continue the MSJ hearing.

The Court hereby continues the MSJ hearing for this matter until **September 16, 2026**, at 9:00 a.m., in Department 16, with the supplemental opposition due **August 26, 2026**, and the supplemental reply due **September 4, 2026**. This should be enough time for the Defendants to produce the discovery that has been compelled and for it to be reviewed by Plaintiff and her expert. If these dates are not suitable for the parties, they may contest this tentative and appear to further discuss continuance options.

5. 9:00 AM CASE NUMBER: C23-00009
CASE NAME: MICHELLE DALY VS. MICHAEL VISTNES, M.D.
HEARING ON SUMMARY MOTION SUMMARY JUDGMENT/MOTION FOR SUMMARY
ADJUDICATION (SEE 4/29/26 HEARING)
FILED BY: VISTNES, M.D., MICHAEL DEAN
TENTATIVE RULING:

Defendants Michael Dean Vistnes M.D. and Dean Vistnes, MD INC. ("Defendants"), bring the instant motion for summary judgment, or in the alternative, summary adjudication ("MSJ"), against the complaint of plaintiff Michelle Daly ("Plaintiff"). This MSJ was originally scheduled to be heard on April 15, 2026. However, Plaintiff filed an opposition that was not substantively on the merits but rather asked the Court for a continuance under Code of Civil Procedure section 473c, subdivision (h), in order to obtain certain discovery that was the subject of future motions to compel, such that a meaningful opposition could be filed. (Mark D. Rosenberg Decl. ISO Opposition to MSJ ("Rosenberg Decl."), ¶¶ 4-29.)

This Motion to Compel Further Responses is set for June 17, 2026, which is after the April 2026 MSJ hearing dates and after the opposition deadlines. As a practical matter, the Court cannot resolve the discovery dispute before Plaintiff must oppose the MSJs under the current schedule, which further supports a continuance under CCP § 437c(h) so discovery can be completed and incorporated into a meaningful opposition.
(Rosenberg Decl., ¶ 19.)

As a result, the Court took the MSJ hearing off calendar.

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6. 9:00 AM CASE NUMBER: C23-00009
CASE NAME: MICHELLE DALY VS. MICHAEL VISTNES, M.D.
HEARING ON SUMMARY MOTION
FILED BY: WHEATON, R.N., JEFF
TENTATIVE RULING:

Defendant Jeff Wheaton, RN (“Defendant”), brings the instant motion for summary judgment, or in the alternative, summary adjudication (“MSJ”), against the complaint of plaintiff Michelle Daly (“Plaintiff”). This MSJ was originally scheduled to be heard on April 15, 2026. However, Plaintiff filed an opposition that was not substantively on the merits but rather asked the Court for a continuance under Code of Civil Procedure section 473c, subdivision (h), in order to obtain certain discovery that was the subject of future motions to compel, such that a meaningful opposition could be filed. (Mark D. Rosenberg Decl. ISO Opposition to MSJ (“Rosenberg Decl.”), ¶¶ 4-29.)

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